

THE VICTIMS AT NAM HOA AND DA MAI CREEK
(JULY-SEPTEMBER 1969)

Information supplied by three disaffected former Viet Cong led to the discovery of more execution victims in the summer and early autumn of 1969. One of these discoveries was of massive proportions. ^{37/}

On June 26, 1969, Pham Phuoc Nhung, alias Dung, age 30, commander of a Viet Cong local force unit operating in the vicinity of Nguyen Thuy Village in the Nam Hoa District south of Hue, reported to government authorities in Nam Hoa that he wished to abandon the National Liberation Front and seek protection under the government's chieu hoi or amnesty program. Nhung, a native of the Nam Hoa District, was familiar with the jungles, creeks, and trails extending across the unpopulated mountain areas of Nam Hoa District between the narrow populated strip of farm lands south and east of Hue and the A Shau Valley and Laotian border some 60

^{37/} The details of the circumstances leading to the discovery of the Tet execution victims found in July and September 1969 recounted in the following pages are taken from the report prepared from Nam Hoa District records by officials of the Information Service of Thua Thien Province, Ministry of Information, Republic of Viet-Nam, and submitted under date of November 12, 1969, to Colonel Le Van Than, Chief, Thua Thien Province, and Mayor of Hue. The 21-page report bears the title: Han Da Mai (Hatred at Da Mai).

kilometers to the west. As a veteran Vietnamese Communist Party member, he had also participated in numerous clandestine meetings at various places in this area at which local Party "action plans" were discussed and developed.

Nhung reported to civilian and military officials in Nam Hoa that during the 1968 Tet offensive he had served as an active courier, maintaining liaison between Viet Cong units in the "green area" (the mountains) and the "paddy field" (the farm lands of the coastal strip). He was therefore informed of the activities of a number of high-ranking Communist cadre, including their operations in the Huong Thuy and Nam Hoa Districts south and southwest of Hue.

In this connection, he stated that he had been present at and personally witnessed several accelerated "people's courts" at various places between Hue and the Dinh Mon ferry crossing approximately 12 kilometers south of the city. This was the area through which the 400 or so people seized at the Cathedral in Phu Cam and others picked up in the neighboring Tu Dam area in the first week of the Communist occupation had been led. It was also on the path south for some of the people who fled from the Thien An Monastery.

The former VC guerrilla told of persons condemned by the "people's courts" being shot or beaten to death and left lying in the

fields and of others tied together and staked out on bare hills and left to die. He also spoke of a place somewhere in the jungle-canopied mountains to the west where he had seen the remains of a large number of persons who had been executed.

Operating on information provided by this defector, Nam Hoa District officials in July 1969 found one grave containing five bodies -- two men and three women -- on a hillside in the heavily wooded, low-mountainous area near the village of Nguyet Bieu, about 8 kilometers southeast of Hue.

They found sixteen more bodies in a four-meter-long VC communications trench in the yard of a pagoda near the bank of the Ta Trach River, a short distance upstream from Nam Hoa. The bodies, piled one on top of another and still bearing traces of the bamboo cables with which they had been bound at the elbows and bound together in groups of three or four, were only lightly covered. Nhung identified these victims as part of a group of 20 persons selected from among the captives brought down from Phu Cam, tried at this spot before a "people's court," convicted, immediately executed, and buried on the spot.

On September 19, 1969, Le Liem, a 19-year-old Viet Cong guerrilla from La Khe Trem hamlet, who had joined the Communist forces during the 1968 Tet offensive, voluntarily surrendered

himself at the Nam Hoa District Sub-Sector headquarters.

On September 20, Vo Tham, another young guerrilla from the same hamlet, reported to a nearby brigade headquarters of the U.S. Army 101st Airborne Division and asked also to be turned over to Government of Viet-Nam authorities as a defector.

Both of these young men had been assigned to a Viet Cong transportation group whose duty it was to obtain food supplies for the District (VC) 439th Intelligence Unit commanded by a VC Battalion Commander named Linh. Their logistical base was located in the remote mountain area, approximately 18 kilometers as the crow flies southwest of Nam Hoa District town, and they were well familiar with the trails and passages between these locations.

Both of these ralliers confirmed defector Nhung's accounts of a massive execution which had taken place during the Tet offensive along the edges of a creek in the rugged mountains, approximately six kilometers south of Nam Hoa, and which was a matter of common knowledge among the Viet Cong of that region. Defector Liem had, in fact, passed by the spot only shortly before his defection, and the sight he witnessed there was the determining factor in his decision to defect from the NLF. The 19-year-old youth came into the little valley through which the

creek runs (it had been used formerly as a VC trail) and witnessed the skeletal remains of hundreds of persons in the bed of the creek and along its banks. Recalling the stories he had heard and frightened and repelled by the scene and its implications, Liem fled across the jungle. He surrendered to the government authorities a few days later. ^{38/}

The young defector described the location as being about half way between Kim Ke (Golden Rooster) Mount and Hon Chuoi (Banana Mount). He said it was near the headwaters of a creek which is unnamed on maps of the area, but which has been known since early times by natives of the region as Suoi Da-Mai, or "Whetstone Creek," because of the soft grey stone found along one stretch of the creek which was used for sharpening knives and farm implements.

Da Mai Creek lies in extremely difficult terrain, with no access roads, and under a double canopy of jungle growth that shrouds most of the steep and narrow little valley through which it runs in a sort of permanent twilight.

^{38/} Interview with hoi chanh (rallier) Le Liem at Hue, October 1, 1969, by Lower House Deputy Nguyen Ly Tuong, National Assemblyman from Thua Thien Province, reported in an article by Le Diep Tu in the Saigon daily newspaper Thoi The (Current Situation), October 6, 1969.

On September 21, 1969, defector Liem accompanied provincial and district officials on a helicopter flight over the Da Mai Creek area and pointed out the approximate vicinity where he had seen the skeletal remains.

Since it requires more than half a day of difficult climbing to reach this remote and jungle-encumbered area on foot and since security considerations dictated maximum employment of the daylight hours, it was decided to effect the recovery of the bodies from Da Mai Creek by air.

On September 22, U.S. Army Engineers, employing explosive charges suspended by cables beneath hovering helicopters of the 101st Airborne Division, blasted a large opening in the heavy jungle canopy obscuring the creek area, then lowered a team of men with power saws. These men felled trees along both sides of the creek and made a clearing of about 100 square meters for use as a base site and helicopter landing area. With ARVN and U.S. troops guarding the perimeters of the area against a possible Viet Cong attack,^{39/} recovery teams of Vietnamese military personnel and civilians organized by the Hue-Thua Thien

^{39/} Both Liem and defector Vo Tham had identified the spot as a hiding area of the 439th VC Intelligence Unit and secret communications and liaison post. (Han Da Mai, p. 11.)

Committee for the Recovery and Burial of Victims of the Tet Massacre, a voluntary citizens' group headed by Hue City Council Chairman Nguyen Khac Thieu, began landing at 10:30 . a.m.

A description of the scene is contained in the following excerpt from the official report:

An area of thick thorns had to be cleared away in order to be able to set foot in the bed of the creek.

The evidences of death were present everywhere in this remote section of the jungle.

When one set foot on the bank of the creek, one immediately saw a number of bones, of all types, scattered all over the area.

When one continued to follow the creek upstream back to its source for about 400 meters, one saw skulls everywhere. Some had been broken. Some remained intact.

The recovery of these bones was started immediately, with the assistance of 20 workers.

The leg and arm bones were put into plastic or rubber bags Skulls were wrapped into large plastic sheets and tied up into bales in order to facilitate their transportation by the helicopters.

After two hours of working, part of the bones floating on the surface of water were recovered.

Meanwhile, an order was issued that all the remaining belongings of the victims, such as torn clothes, slippers and shoes, golden chains, necklaces and chains with crosses, and other identifiable objects should be collected. Some plastic-covered ID [identification] cards ... were also retrieved.

A confirming message was dispatched back to the District Sub-Sector Headquarters so that the interested relatives could be promptly notified.

The collected work could only be done until 4:00 o'clock in the afternoon so that all the people could be transported back to the secure base.

After six hours of hard work, about one-half of the remains were recovered. The upper portion of the creek was then left for the following day.

Nevertheless, a great number of skulls were actually collected from the bed of the creek, washed clean of mud and dirt, and temporarily placed on nearby rocks. Going downstream to a remote section of the creek where there is a whirlpool, the searching staff brought to the surface the greatest number of skulls found at any one place. There were around one hundred of them. Perhaps, this was the place where the majority of the victims were murdered at one time.

There were several places along the banks where bones and skulls had been dragged downstream during the last flood [there were torrential downpours and heavy flooding in Quang Tri and Thua Thien Provinces in September 1968 -- Editor] and actually they were found between the roots of trees. Some were white, some had become dark green.

When a telephone wire was pulled up, a number of finger-bones were found adhering to a piece of shirt which was tied up to two other finger-bones. This indicated that the victims had been tied up to one another When the mighty water flowed downstream, entire groups .. of corpses were also dragged along.

On the first day, around 150 skulls were collected, among them nearly 100 were still intact, but almost all the jaws had been separated. The remaining skulls

were found broken into small pieces. Through careful examination, evidences of bullet penetration were found in some skulls, and in some others there were narrow slit-like apertures suggesting wounds caused by a knife or other sharp instrument. 40/

Additional teams were helicoptered to the site early the following morning (September 23, 1969). By 2:00 p. m., the skeletal remains of more than 500 victims had been recovered along the banks and in the rocky bed of Da Mai Creek and the site was abandoned. The skulls, bones, and remnants of clothing, jewelry, scraps of papers, and other personal paraphernalia of the victims found there were transported by helicopter to the Bang Lang Primary School in Nam Hoa District Town. There they were shown in the days that followed to hundreds of families from the Hue area who were still searching for signs of relatives seized by Communist troops or political cadre and taken away more than a year and a half before.

Correspondent John E. Woodruff in a dispatch from Hue to The Baltimore Sun on October 11 described this scene:

For nearly three weeks now, the people of Phu Cam, a Catholic village, have been coming to a school house in Nam Hoa, where the bones have been carefully arranged on long shelves in one schoolroom and the clothing and other personal items lie in a still-soggy heap in the middle of the floor of the next room.

40/ Han Da Mai pp. 6-9

Hope For Recognition

Most go first to the room with the clothing and personal effects, in the hope that they will find some shred that will end their year and a half of doubts and wonderings.

If they do recognize something -- 492 had as of this morning -- they move on to the next room, to an altar near the door if they are Buddhist or to an altar at the far end of the room if they are Catholic.

There, they kneel facing the massive array of bones.

Along the wall at the rear of the room, 250 relatively intact human skulls face them, three deep on a shelf that extends the entire length of the room. In front of the skulls is a neat wall of arm and leg bones, stacked like cordwood 2 feet deep and extending the entire length of the room.

Weeping In Courtyard

In front of that is a random pile of the remaining bones and bone fragments, and in front of the pile is a row of vases, burning incense sticks, photographs and personal mementoes brought to turn the ghastly display into a massive common family shrine.

In the courtyard outside, men, women and children dressed in the white cheesecloth which is the Vietnamese mourning clothing, cry silently as they move about with no visible purpose under a government banner that says: "How Does The So-Called Liberation Army Answer For This Pile Of Bones?"

In radio broadcasts last spring, after earlier discoveries of mass graves containing a total of more than 800 bodies in mass graves near Hue,

the Communists announced that the dead people were "hoolligan lackeys" who owed a "blood debt" to the North Vietnamese troops who marched them out of Hue.

Inside the schoolhouse yesterday, a woman from Phu Cam knelt weeping in front of the photographs of her two sons, neither of them over 18 years old. Beside the pictures was one of somebody else's son, obviously no more than 10 years old. However they incurred their "blood debt," it has now been paid. 41/

The former VC local force guerrilla commander Pham Phuoc Nhung, who had defected in June, told city and provincial officials at Hue that most of the more than 500 persons executed at Da Mai Creek were from the Thuy Phuoc section, or Phu Cam Parish, (a predominantly Christian neighborhood on the south side of Hue where some 30,000 of Hue's 40,000 Roman Catholics live) and from the neighboring Buddhist villages to the west and south of this area. 42/ Nhung, who had personally participated in the arrests of captives in Hue, reconstructed the story as follows:

41/ John E. Woodruff, "Huge Grave Dug for Bones of Tet Massacre Victims," The Sun, Baltimore, Maryland, October 12, 1969, p. 1.

42/ Defector Nhung's statements were subsequently substantiated. Of the 428 victims whose presence was indicated by evidence found at the Da Mai Creek site, more than four-fifths came from these localities, and all but a handful of the remainder were from neighboring districts. An occupational breakdown of the Da Mai Creek dead on whom identifications were established is contained on pages 88-89.

Civilian and military captives seized by the Viet Cong in the Thuy Phuoc area in the first days of the Communist occupation, including those arrested in the Cathedral, were led to the Tu Dam Pagoda where they were held for several days, before being marched southward in columns of 40-50 tied to one another in clusters of 3-5. They were joined by other captives from villages along the way. The prisoners were led on a long trek through the rugged hill country to the south of Hue, moving mainly at night. Below Nam Hoa District Town, approximately 22 of the prisoners were taken from among these captives and tried and executed by a "people's court," as described earlier. The remainder, excluding those who had expired as a result of individual executions, exhaustion, or abusive treatment along the way, were eventually taken across the Ta Trach River at the Khe Mon Ferry, at a point about three kilometers upstream -- that is, south of -- the point where the Ta Trach and Huu Trach Rivers converge to form the Perfume River. Here they were handed over to a Viet Cong auxiliary unit which escorted them on the final stage of their march through the wilderness to the head waters of Da Mai Creek.

There, according to Nhung's statement, as reported by Le Diep Tu in the Saigon daily Thoi The, the decision was made to execute the prisoners collectively, as they were found to be an

encumbrance to the Viet Cong unit's movements.

"They lined them up on the banks of the stream and then opened up on them with salvos of fire," writes Tu, citing Nhung's description of the event. "There was also a number of people who were pushed down into the creek and drowned since it was the monsoon season and the water in the creek had reached a very high level. There were also other groups of victims pushed down into a shallow stretch of the creek who did not die instantly ... the Viet Cong tossed down grenades to kill them." 43/

Woodruff, who interviewed Nhung before writing his dispatch of October 11 to The Sun, reported that the former VC guerrilla leader "insisted that the [Viet Cong] district chief told him the mass murder [at Da Mai Creek] specifically was authorized by the South Vietnamese Communist command on grounds that the victims had been traitors to the revolution." 44/

43/ Le Diep Tu, Thoi The (Current Situation), Saigon, October 6, 1969. Elements of defector Nhung's account of the Da Mai Creek execution are based also on the John E. Woodruff article in The Sun (Baltimore), October 12, 1969 and statements in the files of the Chieu Hoi (Open Arms) Center in Hue and the Nam Hoa District Office, Nam Hoa, Thua Thien.

44/ Woodruff, loc. cit.

Four hundred and twenty-eight of the more than 500 victims killed at Da Mai Creek were identified. Identification was made through the recognition by relatives of dental and structural peculiarities and, as was far more frequently the case, the recognition of garments, footwear, religious tokens, and other personal effects found at the scene and brought to the schoolhouse at Nam Hoa. The recovery of a number of plastic-covered identification cards, still legible despite long exposure to water and weather, as well as the metal name tags of many of the military personnel, contributed significantly to the sizable number of persons whose presence among the execution victims at Da Mai was thus confirmed.

As in the case of the citizens executed by the Communists during the Tet offensive inside the city of Hue and in the neighboring districts of Huong Tra, Huong Thuy, Phu Vang, and Phu Thu, those whose remains were found in September 1969 scattered in and for more than 400 meters along both sides of Da Mai Creek represented a cross section of the population. Though military and ex-military personnel comprise slightly more than one quarter (124) of the victims listed, only two were officers. The others were simple soldiers and non-commissioned personnel, most of whom were off-duty, out-of-uniform, and spending Tet furloughs with their

families when the Communist forces invaded Hue and the surrounding villages and took them captive.

Students (112) represent the second largest segment of individuals killed, again slightly more than one quarter of the total victims identified. Of these, twelve are identified as university students (sinh-vien) and an even 100 are classified simply as students (hoc-sinh). Though the names and home villages of the students (all male) are listed, their ages are not. However at least 100 of the 112 students executed by the Viet Cong at Da Mai Creek were teen-agers or younger.

There is a characteristically heavy representation of policemen (26), homeguard militiamen (22), and civil servants (13) among the identified dead at Da Mai.

However, significant and even larger numbers of vocational, service, and trades personnel (34) and general and domestic workers (31) were found among the victims of the Communists' mass execution at this site.

Five of those executed were women.

Following is a list of the occupation of the 428 persons identified among the victims of the Da Mai Creek killing:

Identified Victims of Viet Cong Da Mai Creek Massacre
of February 1968 by Occupation ^{45/}

Military captives:	116 ARVN soldiers	
	2 officers (captain and warrant officer)	
	4 discharged soldiers, veterans	
	1 member, Vietnamese Women's Army Corps (WAC)	
	1 seaman, RVN Navy	124
Police (municipal and provincial)		26
Popular Force (village and hamlet homeguards) and People's Self-Defense Force		22
Local government personnel:		
	1 Deputy District Chief (Huong Thuy District)	
	3 village and hamlet representatives	
	3 village and hamlet employees	7
Civil servants (Hue City and Thua Thien Province)		13
Students:	100 secondary school-age and younger	
	12 university students, including former Chairman of the Vietnamese Students' Association and one youth home for the holidays from Dalat University	112

^{45/} This list has been compiled from data provided in the official report Han Da Mai, pp. 11-20, which gives the names of 428 identified victims and, in most cases, the names of their home village or district and occupation. The occupations of forty-seven of these are not listed, or the subjects are listed simply as "civilians."

Professional:	1 editor	
	1 university professor	
	1 teacher	
	2 interpreters	
	1 USAID employe	6
Agricultural:	1 farmer	
	4 Rural Development cadre	5
Vocational, service, and trade personnel:		
	1 mechanic	
	1 metal forger	
	3 shoemakers	
	5 carpenters	
	7 bricklayers	
	7 tailors	
	1 seamstress (female)	
	2 barbers	
	1 electrical worker	
	1 messenger, delivery boy	
	4 transport workers, drivers	
	1 restaurant chef	
	1 shopkeeper (female)	35
General workers and domestics:		
	29 laborers	
	2 housekeepers (female)	31
Miscellaneous:	Persons identified by name only, or by name and home village, but no occupation given; persons designated as civilians	47
Total		428

Such were the "traitors to the revolution" from Hue who were methodically executed by the Viet Cong in the remote mountain reaches of "Whetstone" Creek in February 1968. Their skeletal

remains, recovered from the jungle-shrouded valley more than a year and a half after their deaths, were interred with Buddhist, Catholic, and Confucianist rites in a mass memorial service at the foot of Ba Vanh Hill, four kilometers south of Hue, on October 14, 1969. This site has since been declared a national shrine.

STILL MORE VICTIMS IN PHU THU AND VINH LOC
(NOVEMBER 1969)

Less than a month after the Da Mai Creek victims were interred at Ba Vanh, additional mass graves were found in widely scattered areas of the Phu Thu District and on Vinh Loc Island.

The most significant of these discoveries was made in the salt flats lying between the village of Luong Vien and the Thuy Tu Lagoon in the Thua Thien Province coastal area fifteen kilometers east of Hue. During the month of October 1969, Republic of Viet-Nam regional forces conducted an extensive operation in this area to clear out remaining pockets of Viet Cong guerrilla forces and local infrastructure. On November 5, following the completion of this operation, inhabitants of Luong Vien, a fishing village with a population of around 700, approached a Regional Force unit as it passed nearby and reported that a number of captives brought out from the Hue area at the end of the 1968 Tet offensive, as well as some local people, had been executed by the Viet Cong nearby. In fact, the Viet Cong troops had drafted people from Luong Vien

to dig the execution trenches.

The people of Luong Vien had held their secret for twenty months -- from the end of February 1968 when the executions occurred to the beginning of November 1969 -- fearing reprisals from Viet Cong still present in the area should they pass their knowledge to the government authorities. Now, with the conclusion of the security sweep, these people came forward with their revelation.

Regional Force officers were taken out into the sandy wasteland no more than 400 meters from the village and shown the area where the victims were buried. Within the following week seven graves containing the remains of 161 victims were excavated.

The graves at Luong Vien were similar to those found a few kilometers away in this same sandstrip near Vinh Luu, Le Xa Dong, Dien Dai, and Xuan O in March and April 1969. They were shallow trenches, approximately twenty meters long. The victims were found tied together with bamboo ropes neck-to-neck and with arms or wrists tied behind their backs. They were found in various postures -- standing, sitting, kneeling, fallen across one another.

The Luong Vien villagers, including a fourteen-year-old buffalo boy who had witnessed one execution and who told the searchers exactly where to dig, said the killings had occurred during a three-day period and that they had been accomplished both by shooting and bludgeoning. Again the presence of AK-47 assault rifle shell casings found in the sand and broken bones and skull damage among some of the victims bore witness of this. ^{46/}

During the same week that the Luong Vien graves were uncovered, more graves containing execution victims were found near the villages of An Luu and Trung Ha, four and six kilometers, respectively, farther down the sandstrip and 18-20 kilometers east southeast of Hue.

On November 10, 1969, searching relatives and local officials, again operating on information received in the wake of the security sweep, found a single mass grave near the Vinh Phu pagoda in the village of Trung Ha that disclosed 18 bodies.

^{46/} "Phu Thu District Activities Report for November 1969," dated December 9, 1969, signed by Major Vu Ngoc Tung, Chief, Phu Thu District/Sub-Sector.

On November 11, another mass grave was uncovered about one kilometer east of the village of An Luu, also in the Vinh Phu township. This grave, discovered in a field near the bank of a stream about 250 meters from the little country road that runs along the sandstrip paralleling the Thuy Tu Lagoon, contained 19 bodies.

On the same two days mass graves were found on Vinh Loc Island, across the Lagoon from the Thua Thien Province mainland approximately 17 kilometers due east of Hue, and at Le Xa Tay on the edge of Phu Thu Province only 7-8 kilometers east of the city.

The find on Vinh Loc occurred on November 10 when searchers were led by a captured Viet Cong agent to a collective grave containing the bodies of ten civilians executed by the Viet Cong in the early spring of 1968 immediately following the Tet offensive. The grave was uncovered in a stubblegrass-covered field near the village of My Khanh, which lies astride the little single-lane dirt road that runs the length of this narrow 40-kilometer-long sandspit island separating Hue and Thua Thien from the South China Sea.

This village was on one of the main paths that elements

of the Viet Cong and North Vietnamese forces took for their withdrawal from Hue at the end of the Tet offensive. Taking advantage of the diversion of government protective forces to the Hue area, the Communist troops took possession of a number of communities on the island, set up local "people's governments," and established the area as a staging base and rest center for their troops being pushed out of other areas. There followed a seven-month period of taxation, forced labor, and control-through-terrorism that resulted in approximately one-half of the total population of 52,000 fleeing to the mainland.

An example of the VC rule in this time is recounted in the following excerpt from a report prepared by the military history detachment of the XXIV Corps, United States Army in Viet-Nam in October 1968:

Of those [Vinh Loc islanders] who remained, a few tried to return to their villages and renew their family ties; but the Viet Cong were determined to retain control of the area. In one village, after the people had returned, the VC entered the village and lined up all of the inhabitants. Then, the oldest man, a sixty-five year old elder, and a thirteen year old girl were taken from the line. They were executed in front of the remaining

villagers. The people were told they would stay in the village and pay taxes to the VC, or they would suffer the same fate. 47/

When a combined force of Republic of Viet-Nam and United States military and naval units, assisted by South Vietnamese police and civilian can bo (cadres), cleared the island of its Communist military occupiers and VC underground infrastructure in a ten-day assault in September 1968, one of the enemy casualties was Ong Lam, the VC-appointed Chief of My Loc, a township comprising three villages at the southern end of the island. Ong Lam's claim to fame was that, by his own accounts, he had personally killed fifty people, most of them by throttling.

With the restoration of security to this island east of Hue, the inhabitants of Vinh Loc reported a number of executions had taken place during the Communist occupation. These included four shot by the Communists during a Sunday morning attack on a church service in the Catholic community of Ha Uc, on the west central coast of the island in March 1968

47/ "Vinh Loc", Historical Study 5-68, prepared by 31st Military History Detachment, XXIV Corps, United States Army/Viet-Nam, Phu Bai, Thua Thien, October 1968, p. 3 of 38 pp.

and the live burial nearby of twelve others seized from the village on the same occasion.^{48/}

The bodies of some of the persons executed during the Communist occupation were left for relatives to bury; others were recovered from single and collective graves during and immediately following the occupation and oftentimes were not reported. Owing to the largescale displacement of the population and the absence of communication between the Communist-controlled area and the slender coastal strip, including the District Town of Vinh Loc, that remained under Republic of Viet-Nam control during the Communist occupation, statistics as to the actual number of persons on Vinh Loc Island executed for political (i. e. punishment and suppression of opposition) or "exemplary" (psychological intimidation) reasons are not available. Captain Le Huu Duc, the current District Chief and commander of the Vinh Loc Sub-Sector (March 1970), estimates that the bodies of at least forty execution victims have been recovered and given decent burial by their families, including the sixteen from

^{48/} Files of Vinh Loc District/Sub-Sector, Headquarters, Vinh Loc, March 1968.

Ha Uc whom the Communists either shot or buried alive and the ten found in the collective grave near Khanh My last November. Based on reports received at the Sub-Sector headquarters in the year and a half since the Communist occupiers were expelled, he estimates that at least forty more victims were executed and buried by the Communists in unmarked spots in various parts of the island where the chances of their location, recovery and identification are now remote.

The discovery of still another mass grave at Le Xa Tay, in Phu Ho Township east of Hue, on November 11, 1969, marked the third time in twenty-one months that graves of Communist execution victims were found in this same general vicinity. Searchers still seeking the bodies of persons known to have been arrested or taken away by the Viet Cong turned up a mass grave containing the bodies of 32 victims.

Among the victims found this time at Le Xa Tay was Ton Tat Lang, a civil servant, whose wife had long and patiently sought his remains and now had found them. An Associated Press dispatch, datelined Le Xa Tay, South Vietnam, November 12, 1969, describes this case and reflects

the sense of tragic persistence as South Vietnamese workers continued to dig, nearly two years later, for the bodies of their relatives and neighbors executed by the Communists in the 1968 Tet offensive. This dispatch is quoted as follows:

Kin Still Hunting Hue Massacre Victims ^{49/}

Le Xa Tay, South Viet-Nam, Nov 12 (AP)
- Under a gnarled tree Mrs. Phan Thi Dan wept quietly for her husband. Occasionally she caressed the green plastic sheet tied with nylon cord that contained his remains - a few bones, remnants of his clothing and his skull, with two prominent gold teeth still intact.

"The Viet Cong?" she replied to an inquiry. "We are of the same race, we have the same hair, we speak the same language. But they are without family, without country, without religion. And now we know that they are without humanity."

It was a statement without rancor, even without much outward emotion. Mrs. Dan, a 45-year-old teacher, had known for 21 months that her husband was almost certainly dead, one of more than 3,000 killed by Viet Cong assassination squads in the battle for Hue during the Lunar New Year offensive last year.

This week, for the 14th time, she visited a place where grimy workmen laboriously exhumed remains and young volunteers meticulously sifted them for information that might help identify the victims.

^{49/} The New York Times, November 13, 1969, p. C3.

Some Were Buried Alive

Mrs. Dan was one of perhaps 100 women from a district just southeast of Hue who have waited and watched for months as remains were uncovered in places to which the Viet Cong had marched their victims, then killed them with bullets and clubs or buried them alive.

She became something of an expert on the identification of long-buried bodies.

"You can tell the old women by their teeth and the young ones by their long hair," she explained.

In the case of men -- and the overwhelming number of the victims were men -- it is much harder. Sometimes an identification card, a cigarette lighter or an article bearing a name lies in the mass graves. More often the only hope is dental work, shreds of clothing or just the intuition of a wife or mother.

Mrs. Dan's husband, a 50-year-old civil servant, Ton That Lang, was one of 150 people in his village who were rounded up and marched away on the fourth day of the battle. She does not know why he was picked.

"They took many people, soldiers, Government officials, students and others," she recalled.

The remains of over 100 more people have been found in several sites in the last week. Some lay atop one another, indicating that the Viet Cong executioners had lined them up and shot or clubbed them so that they fell into freshly dug trenches.

The remains are loaded aboard a motor sampan and taken two miles to Phu Thu, the district headquarters. They are laid out and the list of available clues to the identity of each is read over a loudspeaker.

All told, the bodies of 230 victims of execution at the hands of Communist "security units," military elements and political cadre were found in the Phu Thu and Vinh Loc districts in November 1969. Of these, sixty were identifiable through dental characteristics, physical markings, personal effects, or papers found on the body. They, as in hundreds of other instances in Hue and Thua Thien during the past year and a half, were taken away by relatives for private reinterment.

The remaining 170 were brought to Ba Don memorial park, approximately four kilometers east of Hue, for reburial. There once again, on November 14, a mass memorial service was held, once again attended by thousands of people from the city of Hue and nearby communities. Many of them were still missing loved ones and there was no way of knowing whether their father, son, husband, brother, sister, uncle or some other missing relative was among the unidentified victims.

COMMUNIST ACKNOWLEDGEMENT OF RESPONSIBILITY IN THE HUE EXECUTIONS

As of the end of 1969, the remains of 3,320 persons executed by Communist political action and military units during the 1968 Tet offensive had been recovered from 188 collective graves found at twenty-nine sites in Hue and within a 17-kilometer radius of the city.

At least 100 more bodies of execution victims had been recovered from individual graves where they were placed by their executioners or, as was frequently the case, by villagers or neighbors who discovered the body and gave it temporary burial.

More than 2,000 citizens of Hue and its surrounding villages and hamlets were, and still are, missing. Many of these are feared also to have died after having been seized and taken away by Communist security and special action units.

Viet Cong after-action reports, notebooks, letters, secret security briefings and other documents captured by Republic of Viet-Nam and allied forces since the Battle of Hue testify to the character and extent of the Communist

executions and lend support to the fears for the fate of those still missing. These testimonials, written or voiced by men who directed and participated in the attack on the city and obviously not intended to be read or heard outside the ranks of the Communist Party, reveal a readiness to exterminate whole elements of the local population by category in pursuit of the Party's objectives.

Exhortations to "hate" and to "track down and punish" or "annihilate" South Vietnamese soldiers, officers, public officials, civil servants, members of nationalist political parties, "reactionaries," and persons identified as active supporters of the Republic of Viet-Nam are common themes and battle objectives mentioned in these documents. They are accompanied almost unfailingly by statistical claims or individual accounts of killings of persons in these categories by Communist units during the occupation of the city and its suburban villages and in the period of the retreat.

A special lexicon of Vietnamese Communist Party terminology is necessary to appreciate fully the characterizations of the execution victims referred to in these documents. A few of the terms most frequently

employed are:

"puppet authorities" (nguy quyen) -- provincial, district, and municipal officials and functionaries of the civil service;

"puppet army" (nguy quan) -- Army of the Republic of Viet-Nam;

"puppet administrative personnel" (te) -- a comprehensive term of contempt signifying "collaborators," "sympathizers," or supporters of the government, and members of the governmental apparatus; most frequently used by Communists in referring to persons serving in local government in the rural areas, namely, village and hamlet chiefs and deputy chiefs, members of village administrative committees and village councils, ^{50/} heads of wards, sub-wards and interfamily groups, and people assisting them, including RD (rural development) and Popular Force (homeguard) personnel; in practice, te also encompasses members of the immediate

^{50/} Village and hamlet chiefs and deputy chiefs and members of village administrative councils are elected by popular vote under terms of the Village and Hamlet Election Law enacted by the Constituent Assembly in December 1966 and Articles 70-73 of the Republic of Viet-Nam Constitution adopted by the Assembly on March 18, 1967, and promulgated on April 1, 1967.

families of these community leaders as evidenced by the village and hamlet chiefs from the Huong Thuy District suburbs of Hue whose wives were executed with them in the mass executions at the Imperial Tombs;

"tyrants" (ac on, literally, "cruel spirits) -- landowners, proprietors of enterprises, gentry, local dignitaries, leaders of political parties, anyone having a position of power or influence in the community; including police and subordinate officials.

"spies" (gian diep or te-diep) -- anyone in a position to pass information to the civil or military authorities which might cause difficulties for the Viet Cong by revealing their agents, plans, or operations;

"reactionaries" (bon phan dong) -- traditionalists, conservatives, members of nationalist political parties, members of Buddhist and Catholic organizations, members of non-Communist student, labor, and professional organizations, and other vocal, active, and influential elements who, without regard to their loyalty to or critical role toward the Saigon government, might be resistant, uncooperative, difficult-to-manage, and possibly even rallying

points for dissidents in the event of a Communist takeover. In brief, as used by the Communists, it encompasses anyone likely to oppose Communist rule.

In referring to the execution of persons in these categories the captured Communist documents most frequently employ the word diet (annihilated, exterminated, or destroyed) rather than the usual giet (killed). Diet has a derogatory connotation implying contempt or repugnance for the worthless creature killed; it is the expression used in the extermination of cockroaches, termites, and pests. Other expressions used manage to convey the sense of a necessary, just and righteous removal of despicable, unhealthy, or undesirable elements from the body of the people. They include:

tru, removed, purged, rubbed out

tru khu, definitively eliminated

trung tri, punished

loai bo, discarded, got rid of

xu tri, "taken care of"

A tape recording of a VC security briefing session, captured in the mountains of Quang Tin Province in May 1968, contains a personal testimonial which illustrates the attitudes

and actions of the "Liberation Army" personnel who infiltrated the City of Hue in the pre-dawn hours of January 31 as part of the Tet offensive. The speaker is Hoang The Su, a Party member and underground agent from Hue, who crossed the Perfume River from the north as part of a VC armed security unit, touched shore in the Mulberry Field area, and moved down through District II and Gia Hoi to seize control of the neighborhoods east of the Citadel. In a talk apparently intended to inspire members of other Viet Cong fighter units to emulate his exploits, this Hue Communist veteran recalls how he and his comrades shot to death eight unarmed men in two incidents as they moved into the city, then sought without success a student he had marked for execution. Following is an excerpt from the transcript of his remarks:^{51/}

^{51/} Comrade Su's report, from which this passage is taken, was carried over a public address system and thus would appear to have been presented before a fairly sizable VC gathering. The meeting apparently was at night, probably shortly before dawn, and somewhere in a rural area. The Russian tape recorder, which recorded the proceedings and which was captured with this and other tapes, picked up the sound of crickets and other nocturnal noises from the nearby woods and fields and occasionally the crowing of roosters in the neighborhood.

When the main unit was moving (across the river) to the rendezvous point, we came across four of the cruel enemy (ac on) in a sampan. We were using a motorized sampan and we closed in with theirs. I asked them: "Where are you going? Why are you hurrying like that?"

One of the men was Nhan, a former member of the Can Lao party He worked later for the District of Thanh Tra and was very active. He answered that the Liberation Army was nearby. He mistook us for popular forces (Vietnamese homeguard militia) fleeing the city and looking for safety after hearing the VC shooting.

I asked the second man and I don't know his name: "What do you do for a living?"

He replied by saying: "You don't have the right to ask us anything." He said that he was a first lieutenant of the ARVN on special leave (for Tet). He said the Viet Cong were pursuing him and we should not ask him questions but let him join us. I looked at Comrade Van (the unit commander) and both of us were most pleased for we figured we could take our bitter revenge on them right here and now.

When I addressed the third man, he threw back at us: "Why do you question us? I am a first lieutenant of the Black Panthers. 52/ I am home on leave. What do you want? What right have you to ask?"

52/ The Black Panthers (Hac Bao) are an elite volunteer company of the ARVN 1st Infantry Division.

I told him: "Go ahead and talk. We are prepared to protect you people. The Viet Cong are pursuing you and you are not armed and we are armed. Come on over here and show us your papers and we will protect you."

The fourth man told us that he was a cadre of the RD (Rural Development program). Again he said we did not have the right to ask them questions. Right then, Comrade Van exchanged a few glances with Comrades De and Ba and he ordered: "Fire." Then we continued our movement to the destination.

When we were at On Nhu Hau Street, we met four guys riding on two Hondas. They asked us: "Did you hear anything over there (across the river?)"

We answered: "Yes, the Viet Cong are in Dan Ho, Phu The. What do you plan to do?"

Among the four men there, one was the chief of a police post and another was a third lieutenant up on leave from the Thu Duc Infantry School (near Saigon). The latter asked us: "Where are you going? Let me join you. The Viet Cong are on our tail."

I did not know what kind of people the other two were. Well, we were in a position to finish them off so we shot them. We reached the On Nhu Hau intersection, the watch showed 5:45 a.m. of the 31st.

I talked with Comrade Van about assigning a cell to hide in the house of a man named Phan Dinh Thuan. Thuan was a student who was arrested by us, and we had interrogated him and we were about to execute him. He managed to free himself and he escaped from the place

called X and fled to Hue. He was a very dangerous man for he knew about our plans as we had discussed them among ourselves and he had overheard us. Thus we should "do the impossible" to catch him. We moved into his house and inquired about him and someone there told us he had gone away to celebrate Tet some three days ago and he didn't know where he was.

In our urgency to reach our objective on time, we decided to move on. We did not solve the problem right there with him. We hurried on to fulfill our mission. From that point, my unit was split up into many spearheads, many cells, with the mission to annihilate the district on the left bank and the police outpost in Gia Hoi.

Later, after describing how he and his comrades wiped out a police station ("Actually the police force in there were not numerous, but all of them were stubborn. They were stubborn like those who are about to die"), Comrade Su declares:

We had fulfilled the mission assigned by our superiors. We had claimed the whole area of Gia Hoi and Dong Ba.

And he adds:

As for the reason why we finally succeeded in the assigned mission in spite of all the difficulties we had at first, I think it was due to the hatred we had for the enemy. That hatred we had kept filed in our minds for many years.

The areas of Hue City District II which this Viet Cong "security" agent mentions -- the Mulberry Field, Gia Hoi, Dong Ba, and the left bank, which it was part of his unit's assigned mission to "annihilate" -- are the areas from which most of the 838 execution victims whose bodies were later found in mass graves in District II came. The individual killings in which Comrade Su's immediate element was involved in the opening hours of the attack on Hue were but a prelude to the "People's Court" condemnations and on-the-spot executions of individuals and groups that followed.

Another document attests to the matter-of-fact way in which the Communist forces went about the killing of civilians in District III on the south side of the city. This is an 11-page after-action report written by Vo Cong Thuan, commander of the Mai Chi Sapper Unit, 53/ an element of the Viet Cong's Hue City Sapper (demolition-commando) Group, on March 6, 1968. It was captured in the south of

53/ This was the unit that blew up the Trang Tien Bridge, the main highway bridge in the center of Hue, an action which Thuan describes in his report.

Thua Thien Province six months after the Tet offensive.

Following are excerpts:

On February 4, Mich's element occupied Phuoc Qua Church (on the south side of Hue) but had no explosive charges to destroy (Archbishop) Can's residence. They had to borrow 15 kgs of CH explosive from Comrade Cat's cell and had to assign two comrades, Thanh and Ky, to assist the infantry in destroying Can's residence and clearing a road with dimensions 4 m x 4 m so that the infantry could move in and capture various tyrants and reactionaries. In the Phuoc Qua area, we killed a group of reactionaries (p. 5 of original text)

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After the 4th (of February), K14 (VC Infantry Battalion) attacked a group of reactionaries and killed most of them. (p. 6 of original text)

Later in his report the VC sapper commander praises "the spirit of the team in overcoming difficulties and withstanding hardship." And he notes:

In addition, they also conducted propaganda activities, held meetings with the people to explain Party policy, participated in the killing of tyrants and digging of trenches, and stood guard duty to protect the agencies and unit commanders. (p. 9 of original text)

A detailed explanation of the preparations for and

execution of the attack on Hue is contained in an 82-page notebook maintained by Comrade Tung, a high-level Communist Party cadre (apparently a political officer at regional command level) of the Tri-Thien-Hue Military Region. This document, bearing the Viet Cong classification "TOI MAT" (TOP SECRET) and covering the period January 9-April 12, 1968, was captured by a unit of the First United States Air Cavalry Division in operations in the mountains west of Hue in June 1968. Notations by the author together with reports of subsidiary units reveal that --

(1) The policy of executing GVN personnel and other categories of civilians was established before the assault on Hue and was reiterated after the battle.

For the purpose of a lengthy occupation of Hue, we should immediately liberate the rural areas and annihilate the wicked GVN administrative personnel.

(Entry dated January 28, 1968,
two days before the attack on
Hue, original text, p. 20)

Specific Mission We must attack the enemy key agencies, economic installations, and lines of communications. We must also annihilate the enemy mobile troops, reaction-ary elements and tyrants.

(Entry of March 14, 1968 under section headed "Missions -- Region Party Committee's Resolution," original text, p. 50)

(2) Prisoners of war taken during the occupation of Hue were executed by the Communist forces as a matter of expediency.

Troop proselyting [by the VC/NVA forces] was not successful because the troops had to devote themselves to combat missions. Moreover, they were afraid of being discovered by the enemy. It was very difficult for them to handle POW's so they executed the policy of "catch and kill."

(Entry dated February 22, 1968, under the heading "The Situation of CT6 [NVA 6th Regiment] Units," original text, p. 22.)

(3) Civilians in certain categories who sought to protect themselves by joining the Communist occupation forces were "purged" or "eliminated" as "undersirable elements."

Security Activity. The troops did not have a clear distinction between social classes and did not pay attention to the enemy disguised as civilians In Urban Area No. 4 (Gia Hoi) we organized 156 men into four guerrilla platoons. In one platoon we discovered two Dai Viet Party members. I ordered the guerrillas to kill one of them.

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Undesirable elements among new reinforcements should be purged. A number of enemy

henchmen were eliminated from the reinforcements such as jailors, tyrants, etc. (sic). The guerrilla forces also eliminated such undesirable elements.

(Entries of February 22, 1968,
original text, pp. 22-23.)

(4) The execution of South Vietnamese civilians was listed among Communist battle achievements in the Hue offensive at both the small-unit and regional command level.

C16 [Special Action Company 16 of the NVA 6th Regiment] was highly determined and enthusiastic in performing preparation tasks and combat missions ... (At) Van Xa Thuong [Upper Van Xa Hamlet, 8 kilometers northwest of Hue] ... they exterminated 12 tyrants. Although far beyond E (regimental) leadership, they gained considerable achievements.

(Entry of March 13, 1968, original
text, p. 44.)

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Specific results:... We captured and exterminated thousands of people of the reactionary network. From province to village we broke the enemy's administrative grip for the people to rise.

(Entry dated February 25, 1968,
headed "Distribution of Missions,"
original text, pp. 24-25)

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Enormous victory: We annihilated more than 3,000 tyrannical puppet army and government administrative

personnel, including the Deputy Province
Chief of Thua Thien.

(Entry dated March 13, 1968, covering the proceedings of the "E6 [] apparently Regional or Sector Command / Party Committee Meeting." The above claim is contained in a section headed "Evaluation of Victories During the Campaign" and is listed separately from casualties said to have been inflicted on ARVN and Allied military personnel in combat; original text, p. 38.)

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The entire puppet administrative system from hamlet to province was destroyed or disintegrated. More than 3,000 people were wiped out.^{54/}

(Entry of March 13, 1968, under the same heading as the preceding passage, original text, p. 39)

Probably the most explicit acknowledgement of Viet Cong responsibility in the mass executions that took place in the Hue area during the 1968 Tet offensive is contained in the 8-page document cited in the early portions of this report and appended as Document D. This handwritten

^{54/} The writer actually uses the word ten (literally, "names"), a derogatory form which would be used, for example, with reference to people on a list of thieves or others wanted by the law.

report was prepared by a senior political officer of the People's Revolutionary (Communist) Party in the Hue area in late March or early April 1968 and bears the VC classification Tuyet Mat (ABSOLUTE SECRET) written by the author and double-underlined. This document was captured by an allied unit in an operation southwest of Hue on April 25, 1968.

Reviewing the events of the recently completed Tet offensive operations in and around Hue in a report evidently intended for the Party high command, this officer states that the NVA/NLF Central Military Affairs Committee had at its disposal during the period of the occupation:

"14 special action units and 50 self-defense (sic) units which were able to destroy the enemy's administrative personnel and spies, giving the start for the general uprising."
(Page 3 of the English translation, page 3 of the original text.) 55/

55/ The bombings of restaurants and theaters and other acts of terrorism carried out by Viet Cong operatives in South Viet-Nam are frequently attributed in broadcasts by Hanoi and Liberation Radio to "self-defense units."

The writer states that the battle for Hue was "a class struggle... (in which) one of the two adversaries must disappear" and recalls that one of the principal objectives of the battle was to "concentrate our forces on destroying the puppet troops and authorities ... because Hue was the brain of the reactionary spirit." (page 4 of the English translation, page 3 of the original text.)

Then, after giving a day-by-day chronicle of the battle for Hue, he makes the following claims regarding Viet Cong accomplishments: (Italics added.)

Huong Thuy (District) We exterminated one member of the Dai Viet Party Committee, one Senator of South Viet-Nam, 50 Quoc Dan Dang party members, six Dai Viet Party members thirteen Can Lao Nhan Vi Party members, three captains, four 1st lieutenants ... mobilized 1,600 civilian laborers, recruited 600 youths ...

Phu Vang (District) We eliminated 1,892 administrative personnel, 38 policemen, 790 tyrants, six captains, and many non-commissioned officers. (Pages 9-10 of English translation, 6-7 of original text.)

The two suburban districts referred to -- Huong Thuy and Phu Vang -- lie to the south and east of Hue and are areas in which the bulk of the bodies of execution victims recovered since the Communist Tet offensive have been found. It is

noteworthy that the number of victims claimed in this Viet Cong document for the Phu Vang District alone (totaling more than 2,748 by specific categories) greatly exceeds the number of victims whose bodies have been recovered in this area to date. The District described as Phu Vang in the Communist document was partitioned after the Tet offensive and now forms the two districts of Hoa Vang and Phu Thu. A total of approximately 950 bodies of execution victims were discovered in these areas in the spring and autumn of 1969.

The 30-page review of the Communist Party's 1968 "Achievements in Hue City and surrounding districts ..." prepared for the Hue City Party Committee in December 1968 (Document C) declares that during the Tet offensive:

Thousands of tyrants were killed.
Many reactionary factions and organizations
were exterminated. (Original text, p. 6,
English translation, p. 10)

In contrast to private claims of this sort recorded in Viet Cong classified documents and intended for consideration only by elements within the Vietnamese Communist Party infrastructure, public avowals of Communist responsibility for the executions of people in and around Hue at the time of

the Tet offensive have been scant and imprecise. Nevertheless, statements broadcast by the Hanoi Radio at the time of the Tet offensive and in the past year clearly acknowledge Communist responsibility for the Hue executions.

Apparently wishing to counteract the effects of the discovery in the spring of 1969 of new mass graves of execution victims near Hue and to ridicule the announcement of the formation of the Tet offensive, Hanoi Radio in its transmission to South Viet-Nam at 9:00 p.m. on April 27 introduced its news report as follows:

According to the Liberation Press Agency, in order to cover up their cruel acts, the puppet administration in Hue recently played the farce of setting up a so-called Committee for the Search and Burial of the hooligan lackeys who had owed blood debts to the Tri-Thien-Hue compatriots and who were annihilated by the southern armed forces and people in early Mau Than spring. (Italics added.)

More recently the clandestine Liberation Radio, in a broadcast commentary on June 20, 1970, recalled the events at Hue of two years before and declared:

The people of Hue dealt the enemy proper punishing blows, and wicked agents paid for their sins. Many of them were tried by People's Courts, and those who repented were accorded

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mercy in accordance with the policy of the
National Front for the Liberation of South
Viet-Nam.

The broadcast charged that the Government of the
Republic of Viet-Nam had "shamelessly distorted history by
forcing the people to dig up the graves of the wicked agents
punished by our people during the Mau Than Tet."

--oo00oo--